



CHAPTER 24

An Act to repeal the power to requisition land for housing purposes under Defence Regulations and transfer to local authorities in England and Wales the right to possession of requisitioned houses for a limited period; to make provision for the earlier release of such houses in certain cases and for matters connected therewith; to authorise payments out of moneys provided by Parliament in respect of expenditure of local authorities to whom the said right is transferred; to regulate the payment of sums issued out of the consolidated fund under subsection (1) of section eight of the Housing (Temporary Accommodation) Act, 1944; to amend sections ninety-four and one hundred and fifty of the Housing (Scotland) Act, 1950; and for purposes connected with the matters aforesaid.

[6th May, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

REQUISITIONED HOUSES

Transfer of rights to local authorities

1.—(1) On the commencement of this Act, any power of the Minister to retain possession of requisitioned houses shall be terminated, and the right to possession of every such house shall vest in the appropriate local authority.

(2) Subject to the provisions of this Part of this Act, the local authority in whom the right to possession of a requisitioned house is vested under this section may retain possession of the

Transfer of
rights to
local
authorities
for limited
period.

PART I
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house until the thirty-first day of March, nineteen hundred and sixty, and no longer.

(3) Any agreement made in respect of a requisitioned house on behalf of the Minister, and in force immediately before the commencement of this Act, shall continue in force and have effect thereafter as if made on behalf of the local authority.

(4) The local authority who are for the time being in possession of a requisitioned house by virtue of this section may, subject to any such agreement as aforesaid, but notwithstanding any covenant or easement otherwise affecting the house, use the house in such manner as appears to them to be expedient for housing purposes and may for those purposes do anything which a person having an interest in the house would be entitled to do by virtue of that interest.

**Application of
certain
enactments.**

2.—(1) Subject to the provisions of this section, the enactments relating to requisitioned land shall apply in relation to requisitioned houses, while in the possession of a local authority by virtue of this Act, as they apply in relation to land of which a Minister is in possession by virtue of an exercise of emergency powers; and for the purposes of any such enactment as applied by this section any reference to the authority by whom possession of the land was taken shall be construed as a reference to the local authority.

(2) For the purposes of Part VIII of the Requisitioned Land and War Works Act, 1945 (which regulates the compensation on a compulsory purchase of requisitioned land) in its application to requisitioned houses, any period for which possession is retained by the local authority under this Act shall be deemed to be included within the war period as defined for the purposes of the said Part VIII.

(3) Subject to the provisions of this Part of this Act with respect to payments by the Minister to local authorities, all compensation which would be paid out of moneys provided by Parliament under the Compensation (Defence) Act, 1939, in respect of a requisitioned house if possession thereof were retained in the exercise of emergency powers shall be paid by the local authority and not out of moneys so provided, and accordingly the reference to the Crown in subsection (2) of section two of that Act (which regulates the payment of rental compensation) shall be construed as a reference to the local authority.

(4) Notwithstanding anything in section two of the said Act of 1939, any terminal compensation in respect of damage which may have occurred in the case of a requisitioned house at any

time before the commencement of this Act shall accrue due at the end of the period for which possession of the house is retained under this Act, and shall be paid by the local authority in accordance with the provisions of the last foregoing subsection.

(5) Nothing in this section shall be construed as applying or continuing, in relation to requisitioned houses—

- (a) any regulations made under the Emergency Powers (Defence) Act, 1939 ; or
- (b) subsection (2) of section twenty-eight of the Requisitioned Land and War Works Act, 1945 (which enables possession of land held by virtue of emergency powers to be retained after the termination of any other right thereto),

or as affecting the operation of any enactment regulating the procedure for claiming compensation under the Compensation (Defence) Act, 1939, or for settling disputes in respect of such compensation.

Provisions for release of requisitioned houses

3.—(1) If at the date of the commencement of this Act no licence is in force for the occupation of a requisitioned dwelling, or if a licence for the occupation of any such dwelling is terminated at any subsequent date, then, subject to the provisions of this section and of section eight of this Act, the right of the local authority to retain possession of the dwelling under this Act shall be terminated at the expiration of the period of four weeks beginning with that date.

Release of
dwellings
falling vacant.

(2) If the Minister is satisfied, upon application made by the local authority before the expiration of the said period, that it is expedient so to do, he may authorise the local authority to retain possession of the dwelling notwithstanding anything in subsection (1) of this section ; and where such an application is made as aforesaid, the right of the local authority to retain possession of the dwelling shall not in any event be terminated under this section until the date on which the Minister's decision is notified to them.

(3) Without prejudice to the last foregoing subsection, the right of a local authority to retain possession of a dwelling shall not be terminated under this section if within the said period a fresh licence for the occupation of the dwelling is granted by the authority—

- (a) to the former licensee of the dwelling, in order to provide for a variation in the terms of the former licence ;

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—cont.

(b) in the case of his death, to a statutory successor of his ;
or

(c) in pursuance of arrangements for an exchange of accommodation between the licensee and another person being the licensee or tenant of any other dwelling in the possession of or belonging to the local authority.

(4) Where a licence for the occupation of a requisitioned dwelling is terminated by the local authority or has been so terminated before the commencement of this Act—

(a) for the purpose of carrying out repairs to the dwelling ;
or

(b) on the ground of non-payment of rent by the licensee,
then (notwithstanding the foregoing provisions of this section) the right of the local authority to retain possession of the dwelling shall not be terminated under this section if within a period of three months beginning with the date of the termination of the licence a fresh licence for the occupation of the dwelling is granted by the authority to the last previous licensee of the dwelling ; and in such cases there shall be substituted a period of three months for the period mentioned in subsection (1).

(5) After the date mentioned in subsection (1) of this section, the local authority shall not permit any person to enter into occupation of the dwelling (except in pursuance of such a licence as is mentioned in subsection (3) or (4) of this section) unless and until an authorisation is given by the Minister under subsection (2) of this section.

(6) Before applying for such an authorisation, the local authority shall give notice in writing of their intention to do so to the owner of the dwelling ; and, if within two weeks beginning with the day on which that notice is given, the owner commences proceedings under section five of this Act for possession of the dwelling, no authorisation shall be given by the Minister in pursuance of the application of the local authority until the conclusion of the said proceedings.

(7) If in the case of any local authority it appears to the Minister that it is necessary so to do in order to ensure that alternative accommodation is reserved for any persons who may be displaced by virtue of section five or section six of this Act, he may give directions requiring that authority to retain possession of any requisitioned dwellings, notwithstanding anything in subsection (1) of this section, until such time as he may authorise their release ; and in any such case, subsection (5) of this section shall not apply in relation to the occupation of the dwellings in pursuance of licences granted to persons displaced as aforesaid.

4.—(1) Any local authority may, subject to such directions, if any, as may be given by the Minister, and shall, if so required by the Minister, serve on the owners of such requisitioned dwellings as may be decided by the authority or specified by the Minister, as the case may be (being dwellings of which possession is retained under this Act) a notice inviting those owners to accord to the licensees of the dwellings the status of statutory tenants in consideration of payments to be made by the local authority in accordance with this section by way of compensation for loss of the right to vacant possession on the release of the dwellings.

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—cont.
Acceptance
of licensee
as statutory
tenant by
owner.

(2) If within the period specified in that behalf in any such notice of invitation the owner gives to the local authority notice of acceptance in such form as may be so specified, then—

- (a) the right of the local authority to retain possession of the dwelling under this Act shall be terminated at the expiration of a period of one week beginning with the day on which the next instalment of rent is payable by the licensee under the licence by virtue of which he occupies the dwelling ;
- (b) as from the expiration of that period, the Rent Acts shall apply to the dwelling as if the licensee had retained possession by virtue of those Acts after the expiration of a tenancy at a rent equal to the standard rent specified in subsection (3) of this section, upon the terms that the landlord undertook to pay the rates and to provide such services (if any) as were provided for the licensee as such (whether by the local authority or by the owner in pursuance of arrangements with the local authority) and otherwise upon the like terms and conditions as the said licence ; and
- (c) the local authority shall pay to the owner compensation at such rate as may be specified in the notice of invitation, being a rate determined by the Minister with the consent of the Treasury (such compensation to be calculated by reference to the aggregate of the rental compensation payable in respect of the dwelling for the year ending with the date on which the notice of invitation was given, to the nature of the interest of the owner in the dwelling and, in such cases as may be so determined, to the character of the dwelling) :

Provided that the rate so determined shall not in any case exceed such rate as may be prescribed by regulations made by the Minister with the consent of the Treasury by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

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—cont.

(3) The standard rent of a dwelling in respect of which notice of acceptance is given under subsection (2) of this section shall be a rent (payable at the like times as the rent payable by the licensee under the licence mentioned in that subsection) at an annual rate equal to the aggregate of—

- (a) the annual rate of the rental compensation payable in respect of the dwelling immediately before the day on which the notice of invitation was given under this section ;
- (b) the statutory repairs deduction for the dwelling ;
- (c) the rates payable in respect of the dwelling for the financial year current on the said day ; and
- (d) the annual cost (if any) incurred by the local authority (calculated immediately before the said day) in providing such services as are mentioned in paragraph (b) of the said subsection (2), or in making payments to the owner in respect of such services provided by him ;

and for the purposes of the Rent Acts as applied to the dwelling by virtue of this section, that rent shall be deemed to have been fixed as the standard rent by a letting commencing immediately before the first day of September, one thousand nine hundred and thirty-nine, upon the like terms and conditions (other than terms as to rent) as the tenancy described in paragraph (b) of subsection (2) of this section, and (without prejudice to the generality of the foregoing provision) paragraphs (c) and (d) of subsection (1) of section two of the Rent Act of 1920 (which permit increases of fifteen and twenty-five per cent. respectively of the net rent) shall not apply.

(4) Except so far as the local authority may from time to time determine, the rent recoverable by the landlord of any such dwelling in respect of any period before the first day of April, nineteen hundred and sixty-five, from the licensee or any statutory successor of his shall not exceed the rent last payable by the licensee to the local authority under the licence ; and where the rent so recoverable in respect of any such period falls short of the rent which would be recoverable apart from this subsection, the local authority shall pay to the landlord an amount equal to the difference.

(5) Any sums payable by a local authority under the last foregoing subsection shall, unless otherwise agreed upon between the authority and landlord, be paid in arrear at intervals of three months ; and for the purpose of the enactments relating to income tax, such sums shall be deemed to be received by the landlord as rent paid by the tenant.

(6) Any prohibition or restriction imposed by covenant or otherwise upon the right of an owner to grant tenancies of a dwelling shall apply in relation to the giving of a notice of

acceptance under subsection (2) of this section as it would apply in relation to the grant of a tenancy on the terms described in paragraph (b) of that subsection.

PART I
—cont.

5.—(1) Where the owner of a requisitioned dwelling of which possession is retained under this Act (not being an owner whose interest was acquired by purchase in pursuance of a contract made at any time after the thirtieth day of November, nineteen hundred and fifty-four) requires the dwelling as housing accommodation for himself or for his spouse or any such relative as is mentioned in paragraph (h) of the First Schedule to the Rent Act of 1933, the owner may apply to the court for an order for the recovery of possession of the dwelling; and subject to the provisions of subsection (2) of this section the court shall, if satisfied that the dwelling is reasonably required as aforesaid, make an order accordingly.

Application
to court for
release for
owner's
occupation.

(2) If any such dwelling is occupied by a licensee at the commencement of proceedings under this section, the licensee shall be party to the proceedings, and no order for possession shall be made if the court is satisfied that having regard to all the circumstances of the case (including the question whether other accommodation is available respectively for the licensee and for the person for whom the dwelling is required as aforesaid) greater hardship would be caused to the licensee and persons residing with him by making the order than to the person for whom the dwelling is required as aforesaid and persons residing or proposing to reside with him by refusing to make it.

(3) In considering for the purposes of the last foregoing subsection whether other accommodation is available for the licensee of a dwelling, it shall be assumed that no preference would be given to him in respect of accommodation provided by the local authority under Part V of the Housing Act, 1936, over other persons qualified, in accordance with the practice of the authority, to obtain accommodation so provided.

(4) Where the owner of a requisitioned dwelling has obtained an order for possession under this section and it is subsequently made to appear to the court that the order was obtained by misrepresentation or the concealment of material facts, the court may order the owner to pay to the former licensee such sum as appears sufficient as compensation for damage or loss sustained by him as the result of the order.

(5) Subsection (2) of section seventeen of the Rent Act of 1920 (which extends the jurisdiction of county courts in respect of proceedings under that Act) shall apply in relation to any proceedings under this section as it applies to proceedings under that Act.

PART I
—cont.

Power of
Minister to
require local
authority to
release or
purchase in
case
of hardship.

6.—(1) If the Minister is satisfied, on representations made to him by the owner of any requisitioned house of which possession is retained under this Act, that the owner will suffer severe hardship unless he is enabled either to obtain vacant possession of the house or to dispose of his interest therein discharged from the right to retain possession under this Act, the Minister may, after consultation with the local authority, give directions requiring them, within such period as may be specified in the directions, either to release the house to the owner or, at the option of the local authority, to make to the owner an offer to purchase the house in accordance with subsection (2) of this section.

(2) The offer to be made under the foregoing subsection shall be an offer to purchase the interest of the owner on terms that the price payable therefor shall be equal to (and shall be determined in default of agreement in like manner as) the compensation which would be payable in respect of that interest if it were purchased compulsorily, and shall be irrevocable for a period of not less than one month.

Release for
improvement
works.

7.—(1) Where application for an improvement grant under section twenty of the Housing Act, 1949, is made by the owner in respect of a requisitioned house of which possession is retained under this Act, and the application contains an undertaking by the owner to complete the improvement works by a date to be approved by the local authority, and to comply with the condition set out in subsection (2) of this section, the local authority shall, if they approve the application, permit the owner to enter on and if necessary to occupy the house for the purpose of carrying out the said works.

(2) The condition referred to in the foregoing subsection is that the owner will, if so required by the local authority, grant to any person nominated by the local authority and approved by the owner (such approval not to be unreasonably withheld in the case of a responsible nominee) a tenancy of the house, or of each dwelling comprised therein, on such terms as may be agreed upon between the owner and the tenant with the approval of the local authority.

(3) When the improvement works are completed to the satisfaction of the local authority, and the owner has complied with the said condition, the local authority shall release the house.

(4) Where the owner of a house is permitted to occupy it in pursuance of subsection (1) of this section—

(a) no rental compensation shall be payable in respect of the house or any dwelling comprised therein for any period after the date approved by the local authority for the completion of the improvement works ; and

- (b) the Compensation (Defence) Act, 1939, shall apply in relation to any terminal compensation payable in respect of the house as if the local authority had given up possession on the date on which they approved the application.

(5) After the last-mentioned date, sections three and five of this Act shall cease to have effect in relation to any dwelling comprised in the house.

8.—(1) Except with the consent of the owner, a local authority shall not release any part of a requisitioned house while retaining possession under this Act of any other part of that house, unless the part so released consists of a separate dwelling constituted as such before possession of the house was taken in the exercise of emergency powers.

Release of
parts of
requisitioned
houses.

(2) The foregoing subsection shall apply in relation to the termination under section three of this Act of the right of a local authority to retain possession of a dwelling forming part of a requisitioned house as it applies in relation to the release of such a dwelling.

(3) Where the right of a local authority to retain possession under this Act of any part of a requisitioned house (in this subsection referred to as “the released part”) is terminated while possession is retained under this Act of any other part of that house, then—

- (a) if the licensee who last occupied the released part was authorised by the local authority to use any shared accommodation comprised in the part of which possession is retained as aforesaid, the persons for the time being entitled to possession of the released part shall be entitled to use that accommodation to the like extent;
- (b) if any services were provided by the local authority for the said licensee in or from any part of the house of which possession is so retained, the authority shall, if so required by the owner, continue to provide the like services for the persons for the time being entitled to possession of the released part, upon such terms as may be agreed upon between the owner and the local authority, or as may, in default of agreement, be determined by the General Claims Tribunal in accordance with section seven of the Compensation (Defence) Act, 1939.

(4) Where the right of a local authority to retain possession under this Act of any part of a requisitioned house is terminated otherwise than by release by the authority, and the authority do not retain possession under this Act of any dwelling comprised

PART I
—cont.

in the house, being a dwelling in connection with which they require to retain possession of any other part of the house for use by the licensee as shared accommodation or for the provision of services for the licensee, the right of the local authority to retain possession under this Act of the whole of the house shall be deemed to be terminated.

Exchequer contributions

Re-imburse-
ment of
compensation
for
dilapidations.

9.—(1) The Minister shall pay to every local authority a sum equal to the amount of any terminal compensation which is paid by that authority in respect of a requisitioned house.

(2) If at the time when terminal compensation accrues due in respect of a requisitioned house, the local authority, by virtue of the purchase of the house for the purpose of providing housing accommodation in accordance with Part V of the Housing Act, 1936, or of a lease taken by the local authority for that purpose, are owners of the house within the meaning of the Compensation (Defence) Act, 1939, the foregoing subsection shall apply as if the local authority had paid any terminal compensation which would be payable in respect of the house if they were not such owners as aforesaid.

Contributions
to expenses of
management,
etc.

10.—(1) The Minister shall pay to every local authority in respect of any deficit incurred by that authority (as assessed by the Minister) in connection with all requisitioned houses of which they are for the time being in possession under this Act, and in respect of any payments falling to be made by that authority under section four of this Act, a contribution at the following rate, that is to say:—

- (a) one hundred per cent. in respect of any such deficit incurred and payments falling to be made in the period ending with the thirty-first day of March, nineteen hundred and fifty-six;
- (b) seventy-five per cent. in respect of any such deficit incurred and payments falling to be made in the years ending with the thirty-first day of March, nineteen hundred and fifty-seven to nineteen hundred and sixty inclusive.

(2) If the Minister is satisfied in the case of any local authority that the net expenditure falling to be borne by the authority in consequence of the provisions of this Part of this Act in the year ending with the thirty-first day of March, nineteen hundred and fifty-seven or any subsequent financial year is greater than is reasonable, he may, with the consent of the Treasury, make to them a special grant in respect of that year of such amount as he may, with the consent of the Treasury, decide.

PART I
—cont.Contributions
to cost of lease
or purchase.

11.—(1) If it appears to the Minister that it will not be practicable for a local authority, except by means of the lease or purchase of houses, to provide housing accommodation after the thirty-first day of March, nineteen hundred and sixty, for persons occupying requisitioned houses in their district who will require accommodation so provided, he may make contributions under this section in respect of any house approved by him (whether a requisitioned house or a house to be used in substitution for such a house), being a house of which a lease is taken by the local authority for purposes of the accommodation of such persons or (if it appears to the Minister that the requirements of such persons cannot be met by means of leases so taken) a house purchased by the authority for those purposes.

(2) The contributions payable to a local authority under this section in respect of such a house shall be annual contributions for the following period, that is to say—

- (a) in the case of a house taken on lease, the term of the lease or ten years beginning with the commencement of that term, whichever is the shorter ;
- (b) in the case of a house purchased, twenty years beginning with the date of the completion of the purchase,

of an amount equal to seventy-five per cent. of the annual deficit likely to be incurred by that authority in respect of the house (as estimated by the Minister at the beginning of that period).

(3) In estimating for the purposes of this section the annual deficit likely to be incurred by a local authority in respect of a house, the annual cost of any capital payment made by the authority in consideration of the grant of a lease or by way of purchase price, as the case may be, shall (however the sums required for making that payment were provided by the authority) be deemed to be such annual sum as would, in the opinion of the Minister, fall to be provided by the local authority for the payment of interest on, and the repayment of, an amount of borrowed money equal to the amount of that payment, being money to be repaid—

- (a) in the case of a lease, within the term of the lease ;
- (b) in the case of a purchase, within a period of twenty years.

(4) If any house in respect of which contributions are paid under this section ceases to be used by the local authority for housing purposes during the period mentioned in subsection (2) of this section, no further contribution shall be paid thereunder in respect of any financial year after the year in which the house ceases to be so used ; and if any such house, or the lease of any such house, is sold or surrendered by the local authority within that period, the Minister may recover from the authority

PART I
—cont.

an amount not exceeding seventy-five per cent. of the net amount received by the authority in consideration of the sale or surrender after deduction of so much as would be outstanding at the date of the sale of such an amount of borrowed money as is referred to in subsection (3) of this section.

*Supplemental***Housing
revenue
account.**

12.—(1) For each financial year in which a contribution is payable to a local authority under section eleven of this Act, the local authority shall make out of the general rate fund a contribution of an amount equal to twenty-five per cent. of the annual deficit in respect of which that contribution is paid.

(2) Subsection (1) of section one hundred and twenty-nine of the Housing Act, 1936 (which relates to credits and debits in housing revenue accounts), and subsection (2) of section one hundred and thirty of that Act (which relates to the disposal of balances in such accounts) shall have effect as if any reference to the contributions referred to in the Eighth Schedule to that Act included a reference to contributions payable under the foregoing subsection.

(3) For the purposes of the said Act of 1936, any contributions paid by the Minister under section eleven of this Act shall be deemed to be Exchequer contributions.

(4) In relation to the London County Council, the reference in subsection (1) of this section to the general rate fund shall be construed as a reference to the county fund.

Notices.

13.—(1) Every local authority shall, at such times as the Minister may direct, give to the owners or licensees of requisitioned houses such notices with respect to the provisions of this Part of this Act, and in such form, as the Minister may direct.

(2) Sections one hundred and sixty-six and one hundred and sixty-seven of the Housing Act, 1936 (which provide for the service of notices to be served under that Act) shall apply to any notice required or authorised to be served under this Part of this Act as they apply to notices under that Act.

**Repeal of
power to
requisition
for housing
purposes.**

14.—(1) Regulation fifty-one of the Defence (General) Regulations, 1939 (which enables competent authorities to take possession of land) shall cease to have effect so far as it enables the Minister to take possession of land with a view to its use for housing purposes, but without prejudice to the power of the Minister to retain possession under the said Regulation of any requisitioned land other than a requisitioned house.

(2) This section shall have effect in its application to Scotland and Northern Ireland as if for any reference to the Minister there were substituted a reference to the Secretary of State concerned with housing in Scotland, or with Northern Ireland, as the case may be, and as if the words "other than a requisitioned house" were omitted.

PART II

AMENDMENTS OF HOUSING ACTS

15.—(1) The provisions of this section shall have effect with respect to the repayment of sums issued out of the Consolidated Fund of the United Kingdom under subsection (1) of section eight of the Housing (Temporary Accommodation) Act, 1944 (which provides for defraying the expenses incurred by the Minister of Works in connection with the manufacture, construction or erection of structures for use for the provision of temporary housing accommodation under arrangements made under that Act). Repayment of sums issued out of Consolidated Fund under Housing (Temporary Accommodation) Act, 1944.

(2) The aggregate amount remaining to be paid on the first day of April, nineteen hundred and fifty-five, in respect of the repayment of all sums issued as aforesaid at any time before the said first day of April shall be repaid into the Exchequer, with interest thereon at the rate of two-and-a-half per cent. per annum from the thirty-first day of October, nineteen hundred and fifty-four, by seven equal annual instalments, of principal and interest combined, falling due on the thirty-first day of October in each year, the first such instalment falling due in the financial year commencing with the said first day of April.

(3) Any sums issued as aforesaid on or after the said first day of April shall be repaid into the Exchequer before the expiration of the financial year in which they are issued.

(4) Any amount falling to be repaid into the Exchequer under the foregoing provisions of this section shall be paid, as to such part thereof as the Treasury may direct out of moneys provided by Parliament for the service of the Ministry of Housing and Local Government, and as to the remainder thereof out of moneys so provided for the service of the Department of Health for Scotland.

(5) Subsection (3) of section eight of the said Act of 1944 (which requires the aggregate of the sums issued as mentioned in subsection (1) of this section in any one financial year to be repaid by ten equal annual instalments) is hereby repealed with effect from the said first day of April; and subsection (4) of that section (which relates to the application of sums paid into the Exchequer under the said subsection (3)) shall apply to sums repaid into the Exchequer under this section.

PART II
—cont.Amendment
of s. 94 of
Housing
(Scotland)
Act, 1950.

16. Subsection (1) of section ninety-four of the Housing (Scotland) Act, 1950 (which provides for the making by the Secretary of State of advances to the Scottish Special Housing Association) shall have effect with the addition, at the end thereof, of the following proviso, that is to say—

“Provided that the aggregate amount of the advances made under this subsection shall not exceed seventy-five million pounds.”

Application
of s. 150 of
Housing
(Scotland) Act,
1950, to
educational
buildings

17. Subsection (1) of section one hundred and fifty of the Housing (Scotland) Act, 1950 (which provides for the relaxation of building regulations in certain cases) shall have effect in relation to new buildings constructed (including new buildings constructed as extensions to existing buildings) in accordance with plans and specifications approved by the Secretary of State, being buildings required for the purposes of any school or other educational institution in Scotland, as it has effect in relation to new buildings so constructed in connection with housing operations to which the said section one hundred and fifty applies.

PART III

GENERAL

Interpretation.

18.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“dwelling” means a house or part of a house occupied or held for occupation as a separate dwelling; and
“requisitioned dwelling” means a dwelling which is or forms part of a requisitioned house;

“emergency powers” and “exercise” have the meanings respectively assigned to them by the Compensation (Defence) Act, 1939;

“enactment” includes any order, rule, regulation or other instrument made under an Act of Parliament;

“licensee” in relation to a requisitioned dwelling, means the person who, by virtue of an agreement between him and the local authority, is entitled to occupy that dwelling;

“local authority” means a local authority for the purposes of the Housing Act, 1936 (including the London County Council);

“the Minister” means the Minister of Housing and Local Government;

“owner”, in relation to any premises, means the person who, apart from Part I of this Act and emergency powers, would be entitled to possession of the premises;

“rates” includes water rents and charges ;

“the Rent Acts” means the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, and “the Rent Act of 1920” and “the Rent Act of 1933” mean respectively the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, and the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 ;

“rental compensation” means (subject to the provisions of subsection (3) of this section) compensation payable under paragraph (a) of subsection (1) of section two of the Compensation (Defence) Act, 1939, or under any agreement for the payment of compensation in lieu of the compensation payable under that paragraph ; and in relation to a dwelling which consists of part only of the whole of the land in respect of which such compensation is for the time being payable, means the proportionate part of that compensation ;

“requisitioned house” means land which, at the commencement of this Act, is in the possession of the Minister by virtue of an exercise of emergency powers, and which, on the thirtieth day of November, nineteen hundred and fifty-four, was being used by a local authority wholly or mainly for housing purposes under the authority of the Minister, or was held for the purposes of such use, other than land comprised in a camp or other similar establishment or used as a site for the erection of structures provided as a matter of urgent temporary housing accommodation by arrangement with the Minister of Works ; and “the appropriate local authority”, in relation to a requisitioned house, means the local authority by whom it was being used, or for whose use it was held, as aforesaid ;

“requisitioned land” means land of which possession has been taken and is for the time being retained in the exercise of emergency powers ; and “the enactments relating to requisitioned land” includes enactments relating to land of which possession has been taken in the exercise of such powers, or relating to land which is in the possession of a Minister or other competent authority by virtue of an exercise of such powers ;

“statutory repairs deduction” in relation to premises of a gross value specified—

(a) in the case of premises in the administrative county of London, in the first column of Part I of the Third Schedule to the Housing Repairs and Rents Act, 1954 ;

PART III
—cont.

(b) in the case of other premises, in the first column of Part II of that Schedule,

means the amount specified in relation thereto in the second column of the said Part I or Part II as the case may be ; and for the purposes of this definition “ gross value ”, in relation to any premises, means the value shown in respect of those premises in the valuation list in force at the commencement of this Act or, if the premises consist of part only of a hereditament in respect of which such a value is shown, such part of that value as may be apportioned to the premises by agreement between the owner and the local authority, or, in default of such agreement, by the valuation officer as defined by section thirty-three of the Local Government Act, 1948 ;

“ statutory successor ”, in relation to a deceased person having been the licensee of a dwelling, means—

(a) where possession of the dwelling was retained by the licensee by virtue of the Rent Acts at the time of his death, a person who retains possession after the licensee's death by virtue of paragraph (g) of subsection (1) of section twelve of the Rent Act of 1920 ;

(b) where the licensee was in occupation of the dwelling as licensee at the time of his death, any person who, if possession of the dwelling had been retained by the licensee by virtue of the Rent Acts, would or might have been entitled to retain possession as aforesaid ;

“ terminal compensation ” means compensation payable under paragraph (b) of subsection (1) of section two of the Compensation (Defence) Act, 1939, or under any agreement for the payment of compensation in lieu of the compensation payable under that paragraph.

(2) A certificate of the Minister that any land being land which at the commencement of this Act, is in the possession of the Minister by virtue of an exercise of emergency powers is or is not a requisitioned house within the meaning of this Act shall be conclusive evidence of the matter so certified.

(3) Where the rental compensation payable in respect of any premises was fixed by virtue of an agreement and expressed therein to be calculated by reference to the rent which might reasonably be expected to be payable by a tenant who did not undertake to pay the cost of repairs, or whose landlord undertook to pay the rates, any reference in this Act to the amount of

the rental compensation payable at any time shall be construed as a reference to that amount reduced by the statutory repairs deduction for the premises, or by the amount of the rates payable in respect of the premises at that time, as the case may be.

(4) Any question arising under this Act as to the amount of the rental compensation in respect of premises consisting of part only of the land in respect of which such compensation is payable, or as to the amount of the rates payable in respect of any such premises, shall, in default of agreement between the owner and the local authority, be referred to and determined by the General Claims Tribunal in accordance with section seven of the Compensation (Defence) Act, 1939.

(5) Any reference in this Act to an enactment is a reference thereto as amended, and includes a reference thereto as extended or applied, by or under any subsequent enactment, including this Act.

19.—(1) There shall be defrayed out of moneys provided by Parliament— Financial provisions.

- (a) any sums required by the Minister for making payments to local authorities under Part I of this Act ; and
- (b) any increase attributable to this Act in the sums payable under any other enactment out of moneys so provided.

(2) Any sums recovered by the Minister under subsection (4) of section eleven of this Act shall be paid by him into the Exchequer.

20.—(1) This Act may be cited as the Requisitioned Houses and Housing (Amendment) Act, 1955. Short title, citation, commencement and extent.

(2) Sections sixteen and seventeen of this Act and the Housing (Scotland) Acts, 1950 and 1952, may be cited together as the Housing (Scotland) Acts, 1950 to 1955.

(3) This Act shall come into operation on the expiration of the period of one month beginning with the date on which it is passed.

(4) Part I of this Act (except section fourteen) shall not extend to Scotland.

(5) This Act (except section fourteen) shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920	10 & 11 Geo. 5. c. 17.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Housing Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Emergency Powers (Defence) Act, 1939 ...	2 & 3 Geo. 6. c. 62.
Compensation (Defence) Act, 1939 ...	2 & 3 Geo. 6. c. 75.
Housing (Temporary Accommodation) Act, 1944	7 & 8 Geo. 6. c. 36.
Requisitioned Land and War Works Act, 1945	8 & 9 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Housing Act, 1949	12, 13 & 14 Geo. 6. c. 60.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Housing Repairs and Rents Act, 1954 ...	2 & 3 Eliz. 2. c. 53.

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